



Procedure No: EXP202105944 (PS/515/2022)

RESOLUTION OF SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 26/11/21, Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint was directed against the entity INCALL PROYECT, S.L. with CIF: B83177113 (hereinafter, the defendant), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 11/2022, of June 28, General Telecommunications Law (LGTEL). The reasons stated in the complaint were, essentially, that he continued to receive unwanted commercial phone calls on his phone ***PHONE.1, despite his repeated warnings to the operators who claimed to be calling on behalf of Vodafone. Additionally, he indicated that he had been registered on the Robinson list since 2013. Among the calls received, there was one on 03-11-21 at 13:50 from ***PHONE.2.

SECOND: On 04/01/22, this Agency sent a letter to the entity VODAFONE ESPAÑA SAU, requesting information regarding the complaint filed, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on the protection of personal data and guarantee of digital rights ("LOPDGDD").

THIRD: On 10/02/22, a response was received by this Agency from Vodafone to the request made, in which the operator stated the following:

"By means of this letter, we would like to inform you that we have verified that your telephone line, ***PHONE.1, has been registered in Vodafone's internal Robinson list since May 15, 2018, as a consequence of the processing of your right of opposition before Vodafone.

Additionally, we have checked whether the calling numbers indicated in your complaint are listed in our database with the telephone numbers used by our collaborators to make solicitation calls. To this end, we have verified that there are no numbers associated with our collaborators who make solicitation calls on behalf of Vodafone in our database. Therefore, it does not seem possible to relate the receipt of the calls you have highlighted in your complaint with Vodafone."

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FOURTH: On 11/02/22, the Director of the Spanish Agency for Data Protection issued an agreement to admit the processing of the complaint filed, in accordance with Article 65 of the LPDGDD, upon appreciating possible rational indications of a violation of the regulations within the scope of the competencies of the Spanish Agency for Data Protection.

FIFTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to the control authorities in Article 58.1 of the GDPR and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, carrying out, among others, the following actions and being aware, among others, of the following points:

- On 22/02/22, a request was made to the company LEAST COST ROUTING TELECOM S.L., the holder of the telephone line ***PHONE.2, on 03/11/21.

- On 01/03/22, the entity LEAST COST ROUTING TELECOM S.L. responded to the request made by this Agency indicating that the telephone number ***PHONE.2, on 03/11/21 was sub-assigned to the

entity BNT BUSINESS, S.L.U.

- On 02/03/22, a request was made to the company BNT BUSINESS, S.L.U., the holder of the telephone line ***PHONE.2, on 03/11/21.

- On 09/03/22, the entity BNT BUSINESS, S.L.U. responded to the request made by this Agency indicating that the number ***PHONE.2, on 03/11/21, belonged to the entity INCALL PROYECT S.L.

SIXTH: On 10/03/22, this Agency sent a letter to the entity INCALL PROYECT S.L. requesting information regarding the complaint filed.

SEVENTH: On 18/03/22, a response was received by this Agency from the entity INCALL PROYECT S.L., in which it stated the following:

“The reason for the calls is to schedule an in-person appointment with potential clients for the formalization of the corresponding contract for the telephony services distributed by our company as an authorized agent of Vodafone, which, in any case, will be carried out in person.

Attached as Annex I is a copy of the SERVICE PROVISION CONTRACT FOR IN-PERSON CHANNEL along with all its annexes. It should be noted that the formalization of the contract was carried out electronically, which is why the copy we attach does not have the signatures of the responsible parties from Vodafone.

In our files, there are no data regarding the holders of the indicated lines since companies are manually located that may be interested in the services for micro-enterprises offered by Vodafone.”

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In the case at hand in this file, it was verified that the phone number corresponded to a professional office. In fact, this number is advertised both on the Google Business profile of the office and on its own website, as shown in the screenshots in Annex II.

The only data we have in our system related to the phone number is the time of the call and its duration, noting that only one call was made on November 3, 2021, with a duration of 16 seconds.

After that single call, no further contact was made.

The data is not obtained from any database nor provided by external sources. Instead, it is manually compiled by looking at companies likely to contract the solutions that Vodafone has for micro-enterprises and checking that the line is not included in advertising exclusion files and that they are currently not Vodafone customers, and from there the call is made to schedule a commercial visit. Contracts formalized with the technology provider that makes the calls are attached as Annex III. It is noteworthy that this provider is mandated by Vodafone, as evidenced in point SIXTH of this document. Regarding the parameters of the campaign, it should be noted that there are no criteria other than, obviously, that they are not Vodafone customers. Aside from this criterion, we have never been given any customer profiling by Vodafone, nor has any classification been made by our entity.

Vodafone requires all collaborators using telemarketing services to sign a contract with the company BNT Business, SL (hereinafter BNT), which is the supplier of VoIP solutions and filtering through advertising exclusion files. Without this contract, the telecommunications company does not authorize the subcontracting of telemarketing treatments.

As Annex IV, copies of the emails detailing the start of this procedure are provided; on one side, you will find the email from Vodafone outlining the process, and subsequently, the email from BNT confirming that the services have been activated correctly.

On the other hand, Vodafone itself established an additional mechanism to the one described above for consulting numbers to which calls should not be made, called “DrTool.”

This tool requires all collaborators to upload the list of potential calls to be made in advance to exclude those numbers that the company itself has noted on an advertising exclusion list. Once the information has been consulted, a list is returned with the numbers accepted for making the call through the VoIP system provided by BNT.

Through this procedure, Vodafone ensures that the calls made are lawful and are not made to any

number that is on advertising exclusion lists or to numbers that have directly informed Vodafone that they do not wish to receive further advertising.

It is noteworthy that the complaining entity does not have a legal notice on its website ***URL.1 that provides instructions on how to use the information hosted on that site.

EIGHTH: On 26/10/22, the Directorate of the Spanish Agency for Data Protection initiated sanctioning proceedings against the entity being complained about, upon finding reasonable indications of a violation of the provisions established in Article 48.1.b) of the LGT, in relation to Article 23.4 of the LOPDGDD, with an initial sanction of 5,000 euros (five thousand euros), for making commercial calls to the complainant despite their opposition, regardless of whether their data may be publicly accessible or not.

NINTH: On 25/01/23, the complained entity submitted a written statement of allegations regarding the initiation of the proceedings in which, among other points, it states:

It cannot be accepted that INCALL is considered responsible for the processing, as it has always acted on behalf of VODAFONE and held the status of data processor. Thus, in accordance with Article 28 of the GDPR, it complied with all its directives and used the VoIP system of BNT BUSINESS, S.L.U (BNT) as required by VODAFONE as the Controller to make calls through its VoIP system.

This point has been confirmed by VODAFONE in the information provided in this file, specifically stating that: "(...) the following actions have been implemented since January 2020: Require all 'door to door' collaborators by contract to make calls from Vodafone numbers through a VoIP operator provided to them by Vodafone." Additionally, in the same document, VODAFONE itself declares that it is not possible to make calls using the VoIP system imposed by them, as this same system performs filtering: "(...) Since all sales made by these 'door to door' collaborators are audited by a provider external to these collaborators, efforts have been made to develop a system to verify the sales in the systems, rejecting those that have not been made through the Voice operator and therefore cannot be confirmed to meet the filtering requirements. In this way, it would not be possible for sales to be submitted to our systems that come from calls not made from Vodafone numbers.

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Thus, it can be ensured that all traffic is controlled and complies with the requirements set by Vodafone, discouraging the use of numbers not authorized by Vodafone and, therefore, the lack of prior filtering with the advertising exclusion lists."

This implies that if there has been a failure in consulting the advertising exclusion lists, it has been the responsibility of either VODAFONE or BNT, since it was not possible to make calls without using the imposed system.

However, the entity that did acquire the status of Data Controller has been BNT regarding the call filtering process. A similar situation was already sanctioned by this Agency in Sanctioning Procedure 00273/2021 against OASIP, the previous provider of VoIP services and filtering of the advertising exclusion lists of VODAFONE. Regarding this resolution, the following points should be noted:

a) Proven fact five: "The aforementioned commercial calls are made on behalf of and for the account of VDF, which requires its data processors to redirect all commercial actions through OASIP so that this entity filters the recipients whose lines are included in advertising exclusion lists (Robinson or internal lists).

b) Legal basis two: In relation to the allegations presented by OASIP after the initiation agreement, the following is noted: 1R) First, it should be noted that the instructing body does not make the initiation agreement, but is appointed precisely in that agreement.

Secondly, the qualification of the facts regarding OASIP should be considered as responsible for the processing related to the filtering of calls made by the data processors of Vodafone, a concept formulated in the GDPR.

(...) 2R) In this regard, it should be noted that this AEPD has carried out a thorough prior investigation in order to clarify the responsibilities in the violation of the rights and freedoms of the complainant and

has gathered sufficient evidence to undermine the principle of presumption of innocence. This investigation and the incriminating evidence are detailed in the background of the present proposal for resolution.

b) Legal basis three, which states: 1R) The proven facts Third and Fourth of the proposal for Resolution are not accredited. The responsible party for the alleged infringement is Vodafone, as it is competent as the data controller now analyzed.

Regarding the first of the allegations presented, it should be noted that the proven facts are fully accredited in the Background after the investigations carried out by the Inspection of this AEPD in the prior proceedings. Furthermore, OASIP itself confirms the occurrence of calls made to the complainant on seven occasions, even though their telephone line has been registered in the advertising exclusion list since 2020.

2R) Violation of the principle of Responsibility, as Vodafone is responsible for the alleged facts.

Regarding the second of the allegations to the Proposal for Resolution, it should be noted that the holder of the calling line is OASIP. Additionally, OASIP was responsible for filtering the numbers.

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included in the advertising exclusion lists in the actions carried out by Vodafone. Furthermore, the responsibilities incurred by Vodafone are already clarified in a separate procedure initiated by this AEPD. In this regard, it should be noted that the responsibilities for the facts attributed by both entities are of a different nature, although both are complementary, which is why different procedures have been initiated. It is pertinent to mention in these allegations what is stated in Article 35 of Law 39/2015 of October 1, on the Common Administrative Procedure of Public Administrations, which establishes that administrative acts that must be mandatorily motivated include those acts that deviate from the criteria followed in previous actions or from the opinions of consultative bodies. In this respect, and given the identity between the present file and Sanctioning Procedure 00273/2021, the absence of motivation is more significant: none of the resolutions issued in this procedure has explained in any way the reason for the disparity of criteria in these identical cases. This situation, with openly contradictory administrative resolutions, directly undermines legal certainty and generates evident uncertainty and defenselessness. For all these reasons, I REQUEST that this document be considered presented, and that the allegations against the INITIATION AGREEMENT OF SANCTIONING PROCEDURE issued on October 26, 2022, by the Director of the Spanish Agency for Data Protection in File No. EXP202105944 (PS/515/2022) be deemed presented in due time and form, and that the proceedings be ARCHIVED, as the proven facts do not manifestly constitute an administrative infringement by INCALL PROYECT, S.L.

TENTH: On 07/02/22, the proposed resolution was notified to the entity being complained against, in which it was proposed that the Director of the Spanish Agency for Data Protection proceed to sanction the entity, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), with a fine of 5,000 euros, for violating the provisions of Article 48.1.b) of the LGT, in relation to Article 23.4 of the LOPDGDD, for making commercial calls to the complainant despite their opposition, regardless of whether their data could be publicly accessible.

ELEVENTH: After the proposal for resolution was notified to the entity being complained against, on 20/02/23, this Agency received a written response to the proposal for resolution, in which it is indicated:

"After analyzing the last response sent by this Agency, we find that there is confusion regarding my entity's status as a distributor. Therefore, we proceed to make the following clarifications.

Regarding the 'Response to the previously submitted allegations':

Let us also remember that the entity INCALL PROYECT S.L does not present any legally formalized service contract with Vodafone and that..."

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including this last company (Vodafone) claims that the caller number indicated in the complaint (**PHONE.2, on 03/11/21) does not appear in its database as a number associated with any collaborator making solicitation calls on behalf of Vodafone.

As previously indicated, the procedure for signing contracts with VODAFONE followed the following scheme: 1.- VODAFONE sends the contract with all its annexes in pdf format. 2.- Each distributor signs it, digitizes it, and sends it to VODAFONE via email. 3.- Once VODAFONE receives the correctly signed contract, it proceeds to carry out the internal procedures to operate as its distributor, and simultaneously sends a copy of the contract signed by it via postal mail to the company's address. In the case of my entity, we did not receive the contract by postal mail, but there was indeed the provision of services as a distributor, as can be inferred from the conversations with the various managers that have been provided in the previous allegations, as well as demonstrated by the invoices for commission settlements for the services rendered, which are attached as document number 1 in this writing. As you will see, these invoices cover the period of the events investigated in this file. With all this, the commercial relationship between my entity and VODAFONE is more than evident.

SECOND: The process of commercial calls was carried out "through a VoIP operator made available by Vodafone," as stated by VODAFONE.

Specifically, with the company BNT BUSINESS, S.L.U (hereinafter BNT). Only authorized distributors have access to the calling solution of the company BNT. Proof of this, apart from the documentation already in this file, is the copy of the email attached as document number 2 that details the scope of the services and their costs, and which also includes the presentation of the specific services for VODAFONE distributors in the proposal "Vodafone Partners Proposal.pdf."

As you will see, from the service offer, the following image stands out:

The signed contract between my entity and the company BNT is already in the file, but to eliminate any doubt about the use of this platform, copies of the invoices for the services of this company are attached as document number 3.

As you will see, looking at the list of services provided by BNT, VODAFONE was aware that the caller number **PHONE.2 belonged to my entity. Therefore, if there was a failure in consulting the advertising exclusion lists, it was the responsibility of either VODAFONE or BNT since it was not possible to make calls without using the imposed system.

THIRD: In light of all that has been stated, along with the documentation provided throughout the file, it is established that my entity complied with the obligation to consult the Robinson list before making telephone calls since it used the services of BNT, as well as with all the guidelines set by VODAFONE. Therefore, we are in a situation identical to that of Sanctioning Procedure 00273/2021, considering BNT as responsible for the processing related to the filtering of calls for not properly carrying out its services.

FOURTH: It is worth mentioning in the present allegations what is stated in Article 35 of Law 39/2015 of October 1, on the Common Administrative Procedure of Public Administrations, which establishes that administrative acts that must be mandatorily motivated include those acts that deviate from the criteria followed in previous actions or from the opinion of advisory bodies. In this regard, in the response to the initial allegations, the responsibility of the company BNT in making the telephone call has not been analyzed, and given the identity between this file and Sanctioning Procedure 00273/2021, the absence of motivation is even more significant. As we have already stated, this situation with openly contradictory administrative resolutions directly undermines legal certainty and generates evident uncertainty and defenselessness.

For all these reasons, I REQUEST that this writing be considered presented, and that the allegations be deemed submitted in due time and form, and that the proceedings be ARCHIVED, since the proven facts do not manifestly constitute an administrative infringement by INCALL PROYECT, S.L.

PROVEN FACTS.

From the actions carried out in this procedure and from the information and documentation presented by the parties, the following facts have been established:

First: According to the entity Vodafone, on 10/02/22, the caller number indicated in the complaint does not appear in its database as a number associated with any collaborator making solicitation calls on behalf of Vodafone.

Second: The General Subdirectorato of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, carrying out, among others, the following actions and being aware, among others, of the following points:

- On 22/02/22, a request was made to the company LEAST COST ROUTING TELECOM S.L., the holder of the telephone line ***PHONE.2, on 03/11/21.
- On 01/03/22, the entity LEAST COST ROUTING TELECOM S.L. responded to the request made by this Agency indicating that the telephone number ***PHONE.2, on 03/11/21 was sub-assigned to the entity BNT BUSINESS, S.L.U. (BNT).

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- On 02/03/22, a request was made to the company BNT, the holder of the telephone line ***TELEPHONE.2, on 03/11/21.

- On 09/03/22, the entity BNT responded to the request made by this Agency indicating that the number ***TELEPHONE.2, on 03/11/21, belonged to the entity INCALL PROYECT S.L. (INCALL), which was contracted on 27/10/21.

Third: From the documentation presented, it is confirmed that the technological provider making the calls is imposed by Vodafone on INCALL for the telemarketing service. This provider is BNT, which supplies VoIP solutions and filtering through advertising exclusion files.

Additionally, Vodafone established an additional mechanism for consulting numbers to which calls should not be made, called "DrTool."

Fourth: Vodafone has signed a service contract with INCALL since 01/06/21, in which it can be read, among other things, the following:

"The COLLABORATOR may make telephone calls to potential Clients provided that the sole purpose of such calls is to schedule an in-person appointment with potential Clients and under the following conditions: (i) prior express written authorization from VODAFONE in response to a request from the COLLABORATOR – also in writing – which must state their intention and commitment to limit the purpose of these calls to scheduling an in-person appointment; (ii) prior subscription to the corresponding Addendum specifying the obligations assumed by the COLLABORATOR in making the aforementioned calls, (iii) prior assumption of the obligation to transfer, where applicable, to the authorized collaborators in accordance with clause 6.1, all obligations of the aforementioned Addendum, and (iv) prior adherence to the call routing system made available by Vodafone, which is developed in the aforementioned Addendum, in order to ensure the correct filtering of official advertising exclusion lists."

Fifth: In the email sent on 26/10/21 by Vodafone to INCALL with the procedure that ensures the screening of registrants in the Robinson List and internal Robinson List, where the internal functioning specifies the following steps to follow: Introduction of numbers into the tool drtool.es; cross-referencing with the API of ADigital and internal database; removal of phones with more than 9 calls to avoid repetitive calls; delivery of a clean Robinson database and phones with more than 9 calls; the system only allows calls to numbers from that database; issuance of the call to the client...

Sixth: As can be inferred from the documentation presented, Vodafone established an additional mechanism to the one described above for consulting numbers to which calls should not be made, called "DrTool." This tool requires every collaborator to upload in advance the list of potential calls to be made to exclude those numbers that the company itself has noted on an advertising exclusion list. Once the information has been consulted, a list is returned with the accepted numbers for making the call through the VOIP system provided by the company BNT.

Seventh: According to the entity INCALL PROYECT S.L itself, in the document sent to this Agency on 18/03/22, they manually locate companies that may be interested in the microenterprise services offered by Vodafone. In the case at hand, it was verified that the phone number corresponded to a professional office. In fact, this number is advertised both on the Google Business profile of the office and on its own website. The data is not obtained from any database nor provided by external sources. Instead, it is manually compiled by looking for companies likely to contract the solutions that Vodafone has for microenterprises and checking that the line is not included in the advertising exclusion files and that they are currently not Vodafone customers, and from there, the call is made to arrange a commercial visit.

Eighth: According to the respondent, the process of the commercial call was carried out through a VoIP operator provided by Vodafone, as stated by Vodafone. Specifically, with the company BNT, and therefore, if there was a failure in consulting the advertising exclusion lists, it was the responsibility of either Vodafone or BNT since it was not possible to make calls without using the system imposed by Vodafone.

LEGAL GROUNDS

I- Competence

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this sanctioning procedure, by virtue of the powers granted by Article 58.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (GDPR) and according to the provisions of Articles 47, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD). In accordance with the provisions of Article 114.1.b) of the LGTEL, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this sanctioning procedure.

II

According to the complainant in their complaint document, they receive unwanted commercial telephone calls despite their repeated warnings to the operators of the same, who claim to be calling on behalf of Vodafone. Furthermore, they indicate that they have been registered on the Robinson list since 2013. The numbers of the calling lines included, among others, on 03/11/21 from the number ***PHONE.2.

Throughout the investigation process, this Agency became aware that, according to the justification provided by the entity BNT BUSINESS, S.L.U. (BNT), the number ***PHONE.2, on 03/11/21, was associated with the entity INCALL PROYECT S.L. (INCALL).

Information was requested from the entity INCALL, holder of the phone number ***PHONE.2, from where the commercial call was made on 03/11/21, this

It states, among other things, that the reason for the calls was to arrange an in-person appointment with potential clients for the formalization of the corresponding contract for the telephone services they distribute as authorized agents of Vodafone, and to corroborate this, they attach a copy of the service provision contract for in-person channels along with all its annexes. Furthermore, along with the written allegations to the proposed resolution, copies of the invoices submitted to Vodafone are provided, corroborating the commercial relationship between the entity INCALL and Vodafone. INCALL further indicates that the data is not obtained from any database nor provided by external sources, as it is manually compiled by looking at companies likely to contract the solutions that Vodafone has for micro-enterprises and verifying that the line is not included in the advertising exclusion files and that they are currently not Vodafone clients. From there, the call is made to arrange a commercial visit after

filtering with the system implemented by Vodafone, for screening numbers registered in the Robinson List and Vodafone's internal Robinson List, along with an additional mechanism for consulting numbers that should not be called, called "DrTool." This tool requires all collaborators to upload the list of potential calls to be made in advance to exclude those numbers that the company itself has noted in an advertising exclusion list. Once the information has been consulted, a list is returned with the accepted numbers for making the call through the VOIP system provided by the company BNT.

As can be inferred from the allegations presented to the proposed resolution and the documentation attached to them, the process of the commercial call subject to this file was carried out through the procedure made available by Vodafone, through the company BNT. The diagram presented in the allegations shows the functioning of the infrastructure, where it is confirmed that it is not possible to call any client without using the infrastructure imposed by Vodafone, via BNT and Dr. Tool, so it can only be considered that the call made by INCALL to the claimant was permitted by said infrastructure, especially since BNT has recorded in its systems the call subject to the complaint.

III

Regarding the rights of users concerning telephone calls with advertising messages that they receive, Article 48.1.b) of Law 9/2014, of May 9, on Telecommunications (LGT) in force when the events occurred on 03/11/21, states the following: "1. Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of electronic communications services shall have the following rights:

b) To oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in the previous letter and to be informed of this right."

However, as the aforementioned article does not explicitly configure the right of opposition, we must refer to the data protection regulations where it is indeed regulated. That is, Articles 21 of the GDPR and 23 of the LOPDGDD, respectively.

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Thus, we have that Article 21 of the GDPR establishes, regarding the right to object to the processing of personal data, that:

"1. The data subject shall have the right to object at any time, on grounds relating to his or her particular situation, to the processing of personal data concerning him or her which is based on the provisions of Article 6(1)(e) or (f), including profiling based on those provisions.

The data controller shall cease processing the personal data unless it demonstrates compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject, or for the establishment, exercise, or defense of legal claims.

2. When the processing of personal data is for the purpose of direct marketing, the data subject shall have the right to object at any time to the processing of personal data concerning him or her, including profiling to the extent that it is related to such marketing.

3. When the data subject objects to processing for direct marketing purposes, the personal data shall no longer be processed for such purposes.

4. At the latest at the time of the first communication with the data subject, the rights referred to in paragraphs 1 and 2 shall be explicitly mentioned to the data subject and shall be presented clearly and separately from any other information.

5. In the context of the use of information society services, and notwithstanding the provisions of Directive 2002/58/EC, the data subject may exercise his or her right to object by automated means using technical specifications. (...)"

Meanwhile, Article 23.4 of the LOPDGDD establishes that:

"Those intending to carry out direct marketing communications must first consult the advertising exclusion systems that may affect their actions, excluding from processing the data of those affected

who have expressed their opposition or refusal to it. For these purposes, it will be sufficient to consult the exclusion systems included in the list published by the competent control authority to consider the previous obligation fulfilled.”

IV

In the present case, based on the evidence available at this time, it is considered that the commercial call made by the company INCALL to the claimant met the requirements imposed by Vodafone and BNT, therefore, the entity INCALL cannot be charged with a violation of Article 48.1(b) of the LGT in relation to Article 21 of the GDPR and Article 23.4 of the LOPDGDD.

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Therefore, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO FILE the present case against the entity INCALL PROYECT, S.L. with CIF: B83177113, for the violation of the provisions established in Article 48.1(b) of the LGT, in relation to Article 23.4 of the LOPDGDD.

SECOND: TO NOTIFY this resolution to the entity INCALL PROYECT, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1(c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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